

applicable statutory and decisional authorities, the Court finds good cause to make the following findings, orders and ruling.

Ruling

The Court appoints a Discovery Referee. The Court grants its motion, *sua sponte*, for the appointment of a Discovery Referee pursuant to Cal. Code of Civ. Proc. §§ 639(a)(5) and 640.

1. The Discovery Referee shall hear all disputes relevant to the discovery in the action and report findings and make a recommendation thereon. Specifically, the Discovery Referee shall hear the Discovery Motions scheduled for hearing on January 14, and January 21, 2026, and any and all subsequently filed discovery motions. The hearing on these discovery motions are **vacated** from Department 16 calendar and are referred for further hearing to the Discovery Referee.
2. By no later than January 23, 2026, the Parties are ordered to meet and confer pursuant to Cal. Code of Civ. Proc. § 640(a) or (b) and shall submit a stipulation and proposed order listing the proposed discovery referee to the Court along with the proposed referee's curriculum vitae and fee schedule. If the Parties are unable to jointly agree to a proposed Discovery Referee by January 23, 2026, the Parties each shall submit the name of one proposed Discovery Referee and fee schedule along with his/her/their curriculum vitae to the Court by letter, e-mailed to dept16@contracosta.courts.ca.gov by Tuesday, January 27,, 2026. The Court will select one of the proposed referees by unreported minute order. The Discovery Referee will be requested to sign the Judicial Council ADR-110 form. Upon receipt of the executed form by the Discovery Referee, the Court will sign the ADR-110 form.
3. No party has established an economic inability to pay a pro rata share of the referee's fee and so the fees and costs for the initial retention of the Discovery Referee shall be split 50/50 between the parties. The Discovery Referee shall have the authority to make recommendations and proposed orders apportioning the fees, costs and sanctions relating to all discovery motions referred to the Discovery Referee.
4. Plaintiff's Counsel is directed to prepare and e-file a proposed order in compliance with all applicable law for the appointment of the referee, including Code Civ. Proc. § 639 that conforms to this ruling, approved as to form by Defendant's Counsel, attaching this tentative ruling no later than five (5) days after the hearing on this matter. Counsel are ordered to provide copies of all discovery motions and responses to the Discovery Referee within five (5) days of appointment.
5. The Clerk of Court shall vacate all of Plaintiff's Discovery Motions calendared for January 14 and January 21, 2026. Any and all future discovery disputes shall be referred to the Discovery Referee until further orders of the Court.
6. The Parties are ordered to meet and confer and take all necessary steps to implement this order forthwith.

17. 9:01 AM CASE NUMBER: C23-00098

CASE NAME: CARL PREWITT VS. TEXACO INC.

***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO SPECIAL INTERROGATORIES**

FILED BY: TEXACO INC.

TENTATIVE RULING:

Summary

This Tentative Ruling relates to Lines. 17 and 18. The Court **grants** Texaco's Motions in part and **denies** them in part as set forth herein.

Background

This is a personal injury and toxic tort case wherein Plaintiff Carl Prewitt alleges he developed an aplastic anemia blood disorder in September 2019 from his exposure to benzene in chemical products, allegedly including Texaco gasoline. In March 2020, Plaintiffs filed their claims in Philadelphia, and in June 2022 the Philadelphia court dismissed Texaco based on lack of jurisdiction. Seven months later, in January 2023, Plaintiffs refiled their complaint in this court, alleging that the doctrine of equitable tolling justified their delay.

On November 20, 2025 , Defendant Texaco Inc. ("Defendant" or "Texaco") filed two motions:

1. For an Order compelling Plaintiff Deborah Prewitt ("Deborah") to provide further verified written responses to Texaco's Special Interrogatories Sets and 5, Nos. 21, 23-26, 28 and 30, 33-34; and Plaintiff Carl Prewitt ("Carl") to provide further verified responses to Texaco's Special Interrogatories Nos. 42, 44-47, 49 and 51, 54-55 and for a Court admonition to Plaintiffs' *pro hac* vice counsel that they may no longer disregard California statutes and rules of practice
2. For an Order compelling Carl to provide further verified responses to Texaco's Special Interrogatories Nos. 56, 57, 58, 59, 60, 61, 62, 63, 64, 65, and 66 and Request for Production No. 16.

Plaintiffs filed Oppositions to both Motions on December 31, 2025, supported by a Memorandum of Points and Authorities. Plaintiffs failed to produce a counter separate statement pursuant to Cal. Rules of Court Rule No. 3.1345, but incorporates their arguments in their opposition. In the future, Plaintiffs are admonished to comply with the requirements of the Rules of Court regarding the format of discovery motion oppositions. Further failure to comply with the rules may result in the Court striking a non-conforming filing.

Furthermore, some of the arguments raised by Plaintiff's counsel, though somewhat unclear, appear to assert arguments that the discovery sought circumvents expert disclosure and discovery rules pursuant to Cal. Code of Civ. Proc § 2034.260, and appear to be related to claims not asserted in Plaintiff's complaint. Plaintiffs also object to providing further responses that conform to Alabama state law, as the discovery was served prior to the Court's order applying Alabama law to these proceedings.

Texaco filed reply briefs on January 7, 2026, asserting that the discovery sought is relevant under

California Discovery law. Texaco makes further arguments that Plaintiffs make meritless objections and continue to engage in gamesmanship prohibited by the *Greyhound* case.

Analyses

Note: pursuant to the Court's order on October 8, 2025, the laws of the State of Alabama tort law will apply to this case. The original discovery requests at dispute in these motions were propounded under California law prior to the Court's order of October 8, 2025. Discovery laws are procedural. Accordingly, the Court will apply California law relating to the Discovery Act.

Scope of Discovery

Civil discovery in California is governed by the Civil Discovery Act. See Code Civ. Proc. §§ 2016.010–2036.050. The Civil Discovery Act provides litigants with the right to broad discovery. *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 402. In general, any party may obtain discovery regarding any matter, not privileged, that is relevant to the subject matter involved in the pending action or to the determination of any motion made in that action, if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence. Code Civ. Proc. § 2017.010; see *Sinaiko Healthcare Consulting, Inc.*, supra, 148 Cal.App.4th at 402.

On the other hand, the Court is empowered to limit the scope of discovery where the burden, expense, or intrusiveness of that discovery clearly outweighs the likelihood that the information sought will lead to the discovery of admissible evidence. Code Civ. Proc. § 2017.020(a).

Interrogatories

The grounds set forth in Cal. Code of Civ. Proc. § 2030.300(a)(1)-(3) compel further answers to interrogatories where the answers are “incomplete or evasive,” or an “objection to an interrogatory is without merit or too general.” When a motion to compel has been filed, the burden is on responding party to justify any objections made. *Fairmont Ins. Co. v. Superior Court* (2000) 22 Cal.4th 245, 255.

Objections and Sanctions

Under Cal. Code of Civ. Proc. § 2023.010(e),(f),(h), (i) it is a misuse of discovery to make, “without substantial justification, an unmeritorious objection to discovery, “ to make “an evasive response to discovery” and to make or oppose “unsuccessfully without substantial justification a motion to compel or to limit discovery,” or to fail to meet and confer to resolve discovery disputes informally.

Boilerplate objections fail to satisfy the level of specificity mandated by statute, and the use of boilerplate objections may be sanctionable. (*Korea Data Systems Co. v. Super. Court* (1997) 51 Cal.App.4th 1513, 1516.) See also Cal. Code of Civ. Proc. §§ 2023.010(e),(f) and (h), and Cal. Code of Civ. Proc. §§ 2030.210, 2030.220 (b)(c).

It is wholly improper for a party to respond to discovery by making unmeritorious objections and then refusing to identify responsive documents and producing them. California's Discovery act was “intended to take the ‘game’ element out of trial preparation,” considering that “a lawsuit should be an intensive search for the truth, not a game to be determined in outcome by considerations of

tactics and surprise.” (*Greyhound Corp. v. Super. Court In and For Merced County* (1961) 56 Cal.2d 355).

Meet and Confer Requirements

The parties to a discovery dispute are required to meet and confer, a reasonable and good faith attempt, to informally resolve any dispute concerning discovery. See Cal. Code Civ. Proc. §§ 2016.040, 2030.300, *Golf & Tennis Pro Shop, Inc. v. Sup. Ct.* (Frye) (2022) 84 Cal.App.5th 127, 138. In addition to the statutory requirements that obligate counsel to meet and confer on a discovery motion, Contra Costa County Superior Court local rules require the same. See L.R. 2.121(e). Additionally, the Court’s local rules states that motions “should be filed sparingly, in good faith and when the issue(s) cannot be otherwise resolved.” L.R. 2.122(c). Here, the record submitted to the Court show that the Parties engaged in meet and confer communications prior to Texaco’s filing of these two motions.

After considering the papers submitted by counsel, and applying the applicable statutory and decisional authorities, and good cause appearing, the Court makes the following findings, rulings and orders.

Ruling

The Court makes the following orders on Texaco’s Motion to Compel Further Verified Responses to Special Interrogatories Sets and 5, Nos. 21, 23-26, 28 and 30, 33-34 from Deborah:

- No. 21: **Granted**. Plaintiffs’ objections are overruled. Plaintiff shall provide further response describing the design defect alleged.
- No. 23-24: **Granted**. Plaintiffs’ objections are overruled. Plaintiff shall provide further responses identifying expert witnesses.
- No. 25-26: **Granted**. Plaintiffs’ objections are overruled. Plaintiff fails to state facts that support their claim for design and manufacturing defects. The Court finds that Plaintiff only states contentions and legal theories without facts. Plaintiff shall provide further responses.
- No. 28: **Granted**. Plaintiffs’ objections are overruled. Plaintiff shall provide further responses identifying expert witnesses.
- No. 30: **Granted**. Plaintiffs’ objections are overruled. Plaintiff shall provide further responses identifying expert witnesses.
- No. 33-34: **Granted**. Plaintiffs’ objections are overruled. Plaintiff shall provide further responses identifying expert witnesses.

The Court makes the following orders on Texaco’s Motion to Compel Further Responses to provide further verified responses to Texaco’s Special Interrogatories, Set No. 5, Nos. 42, 44-47, 49 and 51, 54-55 from Carl:

- No. 42: **Granted**. Plaintiffs’ objections are overruled. Plaintiff shall provide further response describing the design defect alleged.
- No. 44: **Granted**. Plaintiffs’ objections are overruled. Plaintiff shall provide further responses identifying expert witnesses.
- No. 45: **Granted**. Plaintiffs’ objections are overruled. Plaintiff fails to state facts that support

their claim for design and manufacturing defects. The Court finds that Plaintiff only states contentions and legal theories without facts. Plaintiff shall provide further responses.

- No. 47: **Granted**. Plaintiffs' objections are overruled. Plaintiff shall provide further response describing the manufacturing defect alleged.
- No. 49: **Granted**. Plaintiffs' objections are overruled. Plaintiff shall provide further responses identifying expert witnesses.
- No. 51: **Granted**. Plaintiffs' objections are overruled. Plaintiff shall provide further responses identifying expert witnesses.
- No. 54-55: **Granted**. Plaintiffs' objections are overruled. Plaintiff shall provide further responses identifying expert witnesses.

The Court makes the following orders on Texaco's Motion to Compel Further Verified Responses to Special Interrogatories, Set 6, Interrogatories Nos. 56, 57, 58, 59, 60, 61, 62, 63, 64, 65, and 66 and Request for Production No. 16. and Requests for Production, Set 3, as follows

- No. 56: **Granted**. Plaintiff's objections are overruled. Plaintiff shall provide further responses.
- No. 57: **Granted**. Plaintiffs' objections are overruled. Plaintiff shall provide further responses identifying expert witnesses.
- No. 58: **Granted**. Plaintiffs' objections are overruled. Plaintiff shall provide further responses identifying expert witnesses.
- No. 59: **Granted**. Plaintiff's objections are overruled. Plaintiff shall provide further responses.
- No. 60: **Granted**. Plaintiff's objections are overruled. Plaintiff shall provide further responses.
- No. 61: **Granted**. Plaintiffs' objections are overruled. Plaintiff shall provide further responses identifying expert witnesses.
- No. 62: **Granted**. Plaintiff's objections are overruled. Plaintiff shall provide further responses.
- No. 63: **Granted**. Plaintiffs' objections are overruled. Plaintiff shall provide further responses identifying expert witnesses.
- No. 64: **Granted**. Plaintiffs' objections are overruled. Plaintiff shall provide further responses identifying expert witnesses.
- No. 65: **Denied**. This is an improper hypothetical, calls for an expert opinion, and is argumentative. The objections are sustained.
- No. 66: **Denied**. This is an improper hypothetical, calls for an expert opinion, and is argumentative. The objections are sustained.
- Request for POD No. 16: **Denied**. If a responding party does not have documents response to a request, it must specifically, adequately and completely state a response that includes: (1) An affirmation that a diligent search and reasonable inquiry have been made in an effort to comply with the demand; (2) A statement that it has an inability to comply because the item or category has never existed, has been destroyed, is lost, misplaced, stolen or is not in the possession, custody or control of the responding party; and (3) the name and address of the person or organization known or believe to have possession, custody or control of the item or category of the item. (Cal. Code of Civ. Proc. §§ 2031.310(a)(2) and 2031.230. Plaintiff has responded in compliance with the code.

Time for Compliance: Plaintiffs shall provide further verified answers no later than ten (10) days without further objections.

Sanctions: No sanctions are requested. Each party to bear their own attorney's fees & costs.

Texaco's Counsel is ordered to prepare and e-file a proposed order conforming to this ruling, attaching a copy of this tentative ruling, to the order no later than ten (10) days from the date of the hearing of this Motion.

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See Line 17.